

it was held that the loss must fall on the trustee, and was not to be borne by the trust estate, so as to fall upon the *cestui que trust* (b).

32. **Cestui que trust abroad.**—A *cestui que trust* is often abroad, and then the trustee cannot be sure that at the time of payment under the power of attorney the *cestui que trust* is alive, and if he were dead the power of attorney would be at an end (c). If, however, the *cestui que trust* give to the trustee a written direction by deed or otherwise [*354] to pay *money to a particular person, any payment made under such written direction, until it is revoked, and the revocation comes to the knowledge of the trustee, would be binding on the *cestui que trust's* executors (a). A convenient course in cases of this kind is to transmit the money to a Bank abroad, making it payable to the order of the *cestui que trust*; but where the *cestui que trust* is unable to receive his money in person, his direction had better be asked as to the particular mode of remittance to be adopted. Now, by Lord St. Leonards' Act, 22 & 23 Vict. c. 35, s. 26, a trustee paying under a power of attorney is expressly exempted from liability, notwithstanding the death of [or avoidance of the power by] the person who gave the power of attorney, provided the trustee did not know of such death

(b) *Bostock v. Floyer*, 1 L. R. Eq. 26; 35 Beav. 603. ["The *ratio decidendi* of the case was this, that it was not the ordinary course of business to place money in the hands of a solicitor to invest. It was not a specific investment, it was handed to the solicitor, and in that point of view the case is intelligible enough upon the ground that it was not right for the trustee to hand over the money to the solicitor for the purpose of investment," per L. J. Lindley, *Re Speight*, 22 Ch. D. 727, 761:] and see *Hopgood v. Parkin*, 11 L. R. Eq. 75; *Sutton v. Wilders*, 12 L. R. Eq. 373.

[(c) Now by the Conveyancing Act, 1882 (45 & 46 Vict. c. 39), s. 8, a power of attorney given for valuable consideration since the 31st De-

cember, 1882, and expressed to be irrevocable is not, *in favour of a purchaser*, revoked by anything done by the donor of the power without the concurrence of the donee, or by the death, marriage, lunacy, unsoundness of mind or bankruptcy of the donor; and by s. 9 a power of attorney whether for valuable consideration or not given since the 31st December, 1882, and expressed to be irrevocable for a fixed time not exceeding one year from the date of the instrument, is not, *in favour of a purchaser*, during the fixed time, revoked by any similar act or occurrence.]

(a) See *Vance v. Vance*, 1 Beav. 605; *Harrison v. Asher*, 2 De G. & Sm. 436; *Kiddill v. Farnell*, 3 Sm. & G. 428.